

TENTATIVE RULING FOR AUGUST 27, 2026

Department R12 - Judge Kory Mathewson

Motion: Compel Depositions
Movant: Defendant Etiwanda School District
Respondent: Plaintiffs John Doe 1 via his guardian ad litem Jane Doe and John Doe 2 via his guardian ad litem John Doe 3
Ruling: Motion to Compel Depositions is CONTINUED to 10/27/2026; 9AM; R12

District moves to compel Does 1 and 2 and their respective guardians ad litem to appear and testify at depositions and for monetary sanctions.

District noticed the depositions of both minor Plaintiffs and both GALs for April 2026, but Plaintiffs served written objections. (Lin Decl., ¶¶3, 4, Exhs. A-E.) Plaintiffs offered deposition dates for the two GALs only. (Lin Decl., ¶8, Exh. H.) District cancelled the April depositions, did not move to compel at that time, but instead served four amended deposition notices to be held on June 10 and 11, 2026. (Lin Decl., ¶¶6, 9, Exhs. I-L.) Neither the minor Plaintiffs nor their GALs appeared for the June depositions. (Lin Decl., ¶¶11, 12.)

Code of Civil Procedure Section 2016.040 required District to meet and confer in person, by telephone, or by videoconference to attempt informal resolution of each issue presented by the motion. The minor Plaintiffs' attendance at deposition was an issue that could have and should have been addressed by phone, in person, or videocall before bringing the motion. District failed to engage in any code-compliant meaningful meet and confer efforts in connection with the April 2026 notices and the June 2026 notices. The District did meet and confer with Plaintiffs' counsel by email, who offered dates only for the two Guardians ad Litem and refused to provide any dates for the minor Plaintiffs, but this alone is insufficient. To move the matter forward, the District re-noticed all four depositions on May 14, 2026, for June 10 and June 11, 2026.

Both parties share failures here. The District failed to meet and confer in person, by phone, or videocall as required by CCP 2016.040, had they done so, the Court would find it difficult to deny their motion. Conversely, while Plaintiff raises genuine concerns about the minors' ages (6 to 7 years old) including at least one minor (Doe 2) with autism, language delays, and other cognitive disabilities, (John Doe 3 Decl., ¶¶2, 3; Jane Doe Decl., ¶2.) and Doe 1 continues to show signs of trauma such as fear, panic, regression, bathroom accidents, and difficulty with strangers, (Jane Doe Dec., ¶8.), as well as the nature of the subject matter itself being extremely serious with allegations of physical abuse, verbal abuse, and for Doe 1, sexual abuse by a teacher, Plaintiff did nothing more than raise it as a concern in their emails with District, which the Court cannot address with any legal effect. Procedurally, Plaintiff should have objected again to the June depositions and sought a protective order as they indicated they would, as well as filed any motions they thought might apply to their concerns, such as the Court's authority under Evidence Code 765. Defendant District should have reached out in person, by phone or video call to discuss ways to address what appear to be valid issues of concern that the Court could take special care to protect these under 14 year old witnesses under Evidence Code 765. There appears to be no issues regarding the GALs.

With this in mind, the Court continues this motion hearing and orders the parties to properly meet and confer pursuant to CCP 2016.040, within 20 days of this order and submit a joint declaration at least 10 days before the continued hearing explaining their efforts, the result, and whether the motion is still necessary, particularly in light of the Court's suggestions and views of the respective parties' failures, and in the hope that the parties can reach common ground. If not, the Court will rule on the motion as filed with further consideration of the joint declaration.

Dated: August 27, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR AUGUST 27, 2026

Department R12 - Judge Kory Mathewson

Koavoty USA, Inc. v. Michael Antonio Commercial, Inc. – CIVRS2333288

Motion: Enforce Court’s October 27, 2025 Order Compelling Further Responses to Requests for Production and Production of Documents and request for monetary, issue, and evidentiary sanctions.

Movant: Defendant-Cross-Claimant Michael Antonio Commercial, Inc. (MACI)

Respondent: Plaintiff Koavoty USA, Inc.

Ruling: Motion to Enforce Court’s October 27, 2025 Order Compelling Further Responses to Requests for Production and Production of Documents is GRANTED. Koavoty is Ordered to serve Code-compliant, verified further responses to Requests for Production Nos. 1 and 3–44, including responses complying with section 2031.230 as to Requests Nos. 9–16 within 10 calendar days after service of notice of entry of the order; to produce all responsive documents in its possession, custody, or control; state in its verified responses whether it withheld any responsive document based on attorney-client privilege or work product; and serve a privilege log identifying each responsive document withheld on either ground. Monetary sanctions in the amount of \$2,460.00 is GRANTED and due within 30 days; issue and/or evidentiary sanctions are DENIED.

Michael Antonio Commercial to provide Order and give notice.

Defendants admit they have not complied with the prior Court order. They did not comply by December 1, 2025, the stipulated date of December 31, 2025, and then when they purported to comply on January 28, 2026, they misrepresented (as stated by Cole, mistakenly and unknowingly) they had complied in full, and then proceeded to produce more documents on March 5, 2026.

If a party fails to obey a court order compelling a further response to requests for production of documents, “the court may make those orders that are just” including issue, evidentiary, terminating, and/or monetary sanctions. (Code Civ. Proc., §2031.310, subd. (i).) Upon proper notice, the Court may impose specified sanctions, including monetary, evidentiary, terminating, and other sanctions, against any party “engaging in conduct that is a misuse of the discovery process.” (Code Civ. Proc., §2023.030.) Disobedience of a court order to provide discovery constitutes a misuse of the discovery process. (Code Civ. Proc., §2023.010, subd. (g).)

The Court grants the motion to Enforce Court’s October 27, 2025 Order Compelling Further Responses to Requests for Production and Production of Documents and request for monetary sanctions, but denies issues and/or evidentiary sanctions at this time.

While MACI requests issue and evidentiary sanctions, “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) Discovery sanctions should not be imposed as punishment. (*Id.*, at

p. 992.) The discovery statutes contemplate an incremental approach to sanctions, starting with monetary and ending with termination. (*Ibid.*) “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (*Ibid.*)

Here, monetary sanctions are appropriate. The requested amount, however, 8 hours at \$600+ per hour, is excessive for the simplicity of the issues in this motion. The Court awards sanctions in the reduced amount to \$2,460 (4hrs at \$600/hr + \$60 filing fee).

Dated: August 27, 2026

Judge Kory Mathewson